

The Black Codes

Southern governments were required by the Federal government to grant rights to those who had been enslaved, but they wanted to direct their extent. Between 1865 and 1867, state and local governments enacted laws, known as Black Codes, to keep Black Americans in a subordinate position. The laws, which were not uniform throughout the South, came in many guises.

On the one hand, these statutes granted Black Americans the rights to own property, marry, and use the courts, but the majority of the Black Codes were discriminatory laws that denied rights. For example, there were codes that required Black people to sign yearly labor contracts, restricted freedoms of travel and speech, or outlawed such practices as the purchase of nonagricultural land and the ownership of guns. Heavy penalties were instituted for people deemed “vagrants,” including the sale of their labor at public auction to repay fines. Such laws were designed to bind workers to Southern farms.

The flourishing of Black Codes was a major cause of anger among even moderate Northerners and it contributed to the passage of the Reconstruction Amendments that granted Black Americans citizenship and the right to vote.

Carpetbagger was a belittling term used by Southerners to describe Northerners who came South, carrying their belongings in just one bag made of carpet material, implying their thrifty opportunism.